



Mixed Motives

Overview

Cases that involve a finding that discrimination was one of multiple motivating factors for a challenged employment action are called "mixed motive" cases. In these cases, the evidence shows that the agency acted for both lawful and unlawful reasons. Under the U.S. Supreme Court's decision in *Price Waterhouse v. Hopkins*, 89 FEOR 9001, 490 U.S. 228 (1989), an employer could avoid liability in a mixed motive case if it could show that it would have made the same decision even absent the unlawful factor. However, Congress took action to prevent employers from avoiding liability altogether in Title VII discrimination cases. Under the Civil Rights Act of 1991, an employer is liable for discrimination if race, color, religion, sex or national origin was a motivating factor in a challenged employment action. [42 USC Section 2000e-2\(m\)](#). Nevertheless the complainant's remedies may be limited.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

In general

- A complainant is not required to present direct evidence of discrimination in order to prove discrimination was a motivating factor for the employment actions at issue in mixed motive cases. *Desert Palace, Inc. v. Costa*, [103 LRP 25429](#), 539 U.S. 90 (2003).
- **Hadley:** In *Desert Palace, Inc. v. Costa*, [103 LRP 25429](#), 539 U.S. 90 (2003), the Supreme Court held that the mixed motive analysis was not confined to cases involving direct evidence. Focusing on the precise statutory language of Title VII and the 1991 amendments, the Court found that a mixed motive analysis can be used regardless of whether the plaintiff relies on circumstantial or direct evidence. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Desert Palace, Circumstantial Evidence and the Mixed Motive Analysis](#).
- **Hadley:** The mixed motive analysis is not proper where the administrative judge determines that the agency's sole reason for acting was discriminatory or retaliatory. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Desert Palace, Circumstantial Evidence and the Mixed Motive Analysis](#).

Burdens of proof

- **Hadley:** Once a complainant demonstrates that discrimination was a motivating factor in the agency's action, it is the agency's burden to demonstrate that it would have taken the same action even if it had not considered the discriminatory factor. If the agency is able to make this demonstration, the complainant is not entitled to personal relief, i.e. damages, reinstatement, hiring, promotion, or back pay, but may be entitled to declaratory relief, injunctive relief, attorney's fees or costs. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Desert Palace, Circumstantial Evidence and the Mixed Motive Analysis](#).
- **Hadley:** Once the complainant sustains his burden in a mixed motive case, the commission then examines the agency's purported reasons for acting on the merits. It no longer suffices for the agency simply to advance a legitimate reason for its actions. It must prove the reasons by a preponderance of the evidence. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Rebutting Mixed Motive Evidence](#).
- **Hadley:** If the agency asserts that it was actually motivated by legitimate reasons in addition to discriminatory reasons, it must demonstrate this fact by a preponderance of the evidence. See, e.g., *Carr v. Department of Defense*, [97 FEOR 316](#); EEOC No. 05950651 (EEOC 1997). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Direct Evidence and "Mixed Motive" Cases](#).
- In a mixed motive case, an agency's mere assertion of a legitimate reason for its action is not sufficient to show that it would have taken the same action even if it had not considered the retaliatory factor. The record did not contain evidence to support management's assertion that the employee's performance was poor, and she was never counseled regarding her alleged poor performance. *Mitzie W. v. Department of the Navy*, [120 LRP 14667](#), EEOC No. 2019001915 (EEOC OFO 2020).
- **Hadley:** In many ways, the commission's examination of the agency's defense resembles the factual examination it conducts during the pretext stage of circumstantial evidence cases. The agency's reasons will be examined in light of whether they make sense and whether they are contradicted by other evidence on the record. The difference is that, unlike cases involving pretext, it is the agency that bears the

burden of proof. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Rebutting Mixed Motive Evidence](#).

- The complainant was subjected to a hostile work environment based on his national origin (Mexican American). Further, the complainant's national origin was a motivating factor in the agency's decision to terminate him. Because the agency did not meet its burden in showing that it would have terminated the complainant absent the discrimination, it was ordered to reinstate the complainant, remove any reference to his termination from his file, determine the appropriate amount of back pay, and investigate the amount of compensatory damages. *Padilla v. U.S. Postal Service*, [108 LRP 23065](#), EEOC No. 0120063761 (EEOC OFO 2008).

Limitation of remedies

- Under [42 USC Section 2000e-5\(g\)\(2\)\(B\)](#), if an agency can show it would have taken the same action even in the absence of discrimination, the complainant may be entitled to declaratory relief, injunctive relief and attorney's fees, but not remedies such as reinstatement, back pay or damages.
- Once a complainant demonstrates that discrimination was a motivating factor in the agency's action, it is the agency's burden to demonstrate that it would have taken the same action even if it had not considered the discriminatory factor. If the agency is able to make this demonstration, the complainant is not entitled to personal relief (i.e., damages, reinstatement, hiring, promotion, or back pay) but may be entitled to declaratory relief, injunctive relief, attorney's fees, and/or costs. *Fulghen v. U.S. Postal Service*, [109 LRP 34636](#), EEOC No. 0120073130 (EEOC OFO 2009).
- When a complainant is not selected for a job because of discrimination, the complainant is entitled to be placed in the position in question unless the agency can show with clear and convincing evidence that the complainant would have not been selected for the job even in the absence of the discrimination. *Bedynek-Stumm v. Department of Veterans Affairs*, [108 LRP 11943](#), EEOC No. 0720060054 (EEOC OFO 2008).
- The EEOC has noted that "clear and convincing proof" is defined as "that proof which results in reasonable certainty of the truth of the ultimate fact in controversy." *Beland v. Department of Agriculture*, [102 FEOR 14552](#), EEOC No. 01994590 (EEOC C 2002).
- In mixed motive cases, the agency does not have to offer complainant the position sought if it can demonstrate by clear and convincing evidence that it would have taken the same action even absent the discrimination. If the agency is able to make this demonstration, the complainant is not entitled to personal relief such as reinstatement, hiring, or promotion. The complainant may still be entitled to declaratory relief, injunctive relief, and/or attorneys' fees and costs. [EEOC MD-110, Chapter 11](#) citing *Montante v. Department of Transportation, Federal Aviation Administration*, [111 LRP 73537](#) (EEOC OFO 2011).

Case examples

- The Department of Veterans Affairs subjected an applicant to disability discrimination when it rescinded a tentative job offer. However, the applicant was not entitled to personal relief because the agency showed that the responsible management officials would have ceased processing the complainant's application due to intentional omission of his employment history so that the agency could not contact prior employers, as well as his aggressive demeanor and speech at a meeting with management. *Brenton W. v. Department of Veterans Affairs*, [121 LRP 28944](#), EEOC No. 2020000957 (EEOC OFO 2021).
- The complainant established that she was subjected to discrimination based on race when the U.S. Postal Service did not subject her for position. However, the agency showed that it would not have selected her absent the discrimination because a union steward filed a grievance on behalf of employees contending that the agency violated the collective bargaining agreement by not advertising the position internal candidates first, and an LR specialist credibly testified that he reached the conclusion that the posting of the position violated the CBA and he decided to settle the grievance that required the cancellation of the hiring process. He was not aware that the complainant was the leading candidate for the position at the time the settlement agreement was reached. *Iliana S. v. U.S. Postal Service*, [12 LRP 692](#), EEOC No. 2019005824 (EEOC OFO 2020).
- The Environmental Protection Agency subjected a criminal investigator to retaliation when the agency directly cited to his EEO activity as reason for his proposed termination. However, applying a mixed motive analysis, the EEOC found that the agency would have made the same decisions even absent discrimination. Accordingly, the investigator was not entitled to personal relief with respect to the agency's reprisal. *Rigoberto A. v. Environmental Protection Agency*, [119 LRP 38900](#), EEOC No. 0120180363 (EEOC OFO 2019).
- A business program specialist established that he was subjected to discrimination when he was not selected for a promotion, in part because of concerns about his prior EEO activity. However, the agency established that the decision was also based on the selectee's superior qualifications. Accordingly, the specialist was entitled to no additional relief beyond \$32,022 in attorney's fees and \$1,384 in costs. *Herb S. v. Department of Agriculture, Rural Development*, [117 LRP 8976](#), EEOC No. 0120141055 (EEOC OFO 2017).
- The Department of Justice subjected a specialist to religious discrimination when a unit chief made a statement establishing that his Christian faith was a motivating factor in the decision to give him an unacceptable rating on his appraisal at the conclusion of his performance improvement plan. However, the specialist was not entitled to personal relief because the agency would have taken the same actions absent discrimination. *Complainant v. Department of Justice, Federal Bureau of Investigation*, [0120122878](#), [115 LRP 17228](#) (EEOC OFO 2015).
- An acting manager subjected the complainant to religious discrimination when she placed her on off-duty status because she was reading the Bible when she was supposed to be working. However, the complainant's remedy was limited because the manager would have taken the same action in the absence of a discriminatory motive based on the complainant's failure to work while on the clock. *Fulghen v. U.S. Postal Service*, [109 LRP 34636](#), EEOC No. 0120073130 (EEOC OFO 2009).
- The EEOC found that the agency's selection panel discriminated against the complainant by improperly discussing the race of the candidates. However, it found that the selectee, who was the most qualified, still would have been chosen even in the absence of the discrimination. The complainant was not entitled to placement in the position or back pay, but was entitled to attorney's fees. *Bell v. Department of the Navy*, [108 LRP 39290](#), EEOC No. 0720080024 (EEOC OFO 2008).
- Racial animus was a motivating factor in the complainant's proposed removal for intoxication that was reduced to a 21-day suspension. However, his remedy was limited because the agency established that it would have taken the same action even in the absence of

discrimination. *Cody v. U.S. Postal Service*, [97 FEOR 3014](#), EEOC No. 01950574 (EEOC 1996).

Inappropriate mixed motive analysis

- **Hadley:** The mixed motive analysis is not proper where the administrative judge determines that the agency's sole reason for acting was discriminatory or retaliatory. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Desert Palace, Circumstantial Evidence and the Mixed Motive Analysis*.
- The EEOC found an AJ erred in applying a mixed motive analysis to the complainant's case because the agency did not articulate a legitimate, nondiscriminatory reason for its disputed action -- not selecting the complainant for a position. *Bedynek-Stumm v. Department of Veterans Affairs*, [108 LRP 11943](#), EEOC No. 0720060054 (EEOC OFO 2008).
- The EEOC found an administrative judge inappropriately applied a mixed motive analysis to a case where the exam the agency cited as the reason for denying the complainant reinstatement occurred nearly a year after its decision. Thus, the agency was not operating with both legitimate and non-legitimate motives at the time of its action. *Sharp v. U.S. Postal Service*, [105 LRP 48911](#), EEOC No. 01A40755 (EEOC OFO 2005).

Retaliation claims

- Because retaliation is prohibited by a different section of Title VII, the Supreme Court has ruled that the Civil Rights Act of 1991 changes do not apply and mixed-motive analysis is not available for retaliation claims. Retaliation claims require proof that the desire to retaliate was the but-for cause of the challenged employment action. *University of Texas Southwestern Medical Center v. Nassar*, [113 LRP 26086](#), 133 S. Ct. 2517 (2013).
- In federal sector Title VII and ADEA retaliation cases, the EEOC has held that the "but-for" standard does not apply because the relevant federal sector statutory provisions do not employ the same language on which the Supreme Court based its holding in *Nassar*. *EEOC Enforcement Guidance on Retaliation and Related Issues* (2016).
- The federal sector provisions contain a "broad prohibition of 'discrimination' rather than a list of specific prohibited practices," requiring that employment "be made free from any discrimination," including retaliation. Therefore, in Title VII and ADEA cases against a federal employer, retaliation is prohibited if it was a motivating factor. *EEOC Enforcement Guidance on Retaliation and Related Issues* (2016).
- The EEOC found that a biological science laboratory technician was subjected to retaliation for her prior EEO activity when a supervisor denied her request for a promotion, stating that she "spent too much time working on her EEO case" and that she wasn't putting enough time into her laboratory work or learning advanced techniques. However, the agency provided evidence that it would have taken the same action absent any retaliatory motive. Therefore, the EEOC found she was not entitled to personal relief. *Aline A. v. Department of Agriculture, Agricultural Research Service*, [123 LRP 9469](#), EEOC No. 2022003111 (EEOC OFO 2023).
- Agency officials were motivated by reprisal when they issued the complainant a notice of removal. However, even though her EEO activity was referenced in the notice, the agency established that it would have terminated her in any case based on her attendance issues. Accordingly, she was not entitled to personal remedies. *Susie K. v. U.S. Postal Service*, [123 LRP 1717](#), EEOC No. 2022003023 (EEOC OFO 2022).
- An administrative judge found that a city letter carrier established that his prior protected EEO activity played a role in management's decision to remove him and in his removal. However, the AJ found that these actions were also motivated by his union activity, noting that he filed more than 10 grievances in a four-year period. Because this was a mixed motive and the agency established that it would have taken the same actions even if the carrier had not engaged in prior EEO activity, he was not entitled to personal relief. The EEOC agreed on appeal. *Sean T. v. U.S. Postal Service*, [117 LRP 51205](#), EEOC No. 0120150928 (EEOC OFO 2017).

Age discrimination claims

- In *Gross v. FBL Financial Services, Inc.*, [109 LRP 35279](#), 129 S. Ct. 2343 (2009), a private sector case, the Supreme Court held that a plaintiff in an ADEA claim must prove by a preponderance of the evidence that age was the "but for" cause of the employment action and that the burden of proof does not shift to the employer to show it would have taken the same action regardless of age even where there is some evidence that age was a factor in the action.
- **Hadley:** Subsequently, the EEOC rejected the application of *Gross* in federal sector cases. In *Goblirsch-Erickson v. Postmaster General*, [111 LRP 25298](#), EEOC No. 0120110390 (EEOC OFO 2011), the commission noted that contrary to the holding in *Gross*, *Fuller v. Gates, Secretary of Defense*, [110 LRP 14528](#), No. 5:06-CV-091 (E.D. Tex. 03/01/10) concluded that *Gross* applied to private employment, and not employment by the federal government. The court in *Fuller* found that the different language in the two sections of the ADEA demonstrated that Congress intended different meanings. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Age as Determinative Factor*.
- The Supreme Court found that federal employees can prevail on claims of age discrimination by showing that age was a consideration in the contested agency decision. Age does not need to be the but-for cause of a challenged personnel decision because the plain meaning of Section 633a(a) of the ADEA "demands that personnel actions be untainted by any consideration of age." However, a failure to show age was the but-for reason for the discrimination may result in only limited remedies. *Babb v. Department of Veterans Affairs*, [120 LRP 11906](#), 140 S. Ct. 1168 (2020), reversing [118 LRP 30006](#) (11th Cir. 2018).

Disability claims

- The state of the law with regard to mixed motive cases under the Rehabilitation Act and the Americans with Disabilities Act appears to be uncertain, with some split in the courts, but in *Feder v. Department of Justice, Federal Bureau of Investigation*, [112 LRP 39882](#), EEOC No. 0720110014 (EEOC OFO 2012), the EEOC found mixed motive analysis can be applied to Rehabilitation Act cases.
- The EEOC found the agency's impermissible desire to punish the complainant in retaliation for requesting and receiving accommodations for his hearing impairment was a motivating factor in his removal. Further, the agency failed to prove that it would have taken the same action

even in the absence of a retaliatory motive. Accordingly, the complainant's remedy was not limited. *Feder v. Department of Justice, Federal Bureau of Investigation*, [112 LRP 39882](#), EEOC No. 0720110014 (EEOC OFO 2012).

- Deferring to the EEOC's analysis in *Feder v. Department of Justice, Federal Bureau of Investigation*, [112 LRP 39882](#), Appeal No. 0720110014 (EEOC OFO 2012), the MSPB overruled its prior finding in *Southerland v. Department of Defense*, [111 LRP 65110](#), [117 MSPR 56](#) (MSPB 2011) that a mixed motive analysis does not apply in disability discrimination cases arising under the ADAAA. *Southerland v. Department of Defense*, [113 LRP 25352](#), [119 MSPR 566](#) (MSPB 2013).
- The EEOC applied a mixed motive analysis, which it characterized as a "Title VII principle," to a Rehabilitation Act case. It found a supervisor was motivated, in part, by disability-based and retaliatory animus when she intervened in the hiring process such that the complainant's conditional offer of employment was rescinded. However, the EEOC found the supervisor would have interfered even absent an impermissible motive given the complainant's unauthorized leave issues. *Henry S. v. Department of Defense, Defense Intelligence Agency*, [118 LRP 13773](#), EEOC No. 0720170020 (EEOC OFO 2018).
- An employee alleged that the agency subjected him to retaliation for his disability discrimination complaints when his supervisor gave a negative job reference and he was not selected for a promotion. The agency provided nondiscriminatory reasons for its actions. The 1st U Circuit Court of Appeals ruled that the mixed motive theory was not available under the Rehabilitation Act because the law uses the but-for causation standard. Summary judgment was granted to the agency. *Palmquist v. Department of Veterans Affairs*, [112 LRP 39952](#), 689 F.3d 66 (1st Cir. 2012).
- To meet the Rehabilitation Act's requirement that disability be the sole reason for an adverse employment action, there must be no legitimate business reason for the decision. The Rehabilitation Act does not recognize mixed motive cases where discriminatory animus is part of the decision but not the only factor. *Jones v. U.S. Postal Service*, [107 LRP 33823](#), 488 F.3d 397 (6th Cir. 2007).
- The 5th U.S. Circuit Court of Appeals adopted the mixed motive theory of liability in Section 504 Rehabilitation Act claims. Thus, to establish a claim of employment discrimination under Section 504, an employee must show that disability played a motivating role in the adverse employment action. *Pinkerton v. Department of Education*, [107 LRP 65902](#), 508 F.3d 207 (5th Cir. 2007).
- Pinkerton* was affirmed in an *en banc* decision. The 5th U.S. Circuit Court of Appeals noted, "we express no opinion on who bears the burden of proof at trial, including whether the 'modified *McDonnell-Douglas* scheme' adopted by this court for ADEA cases applies to ADA actions. [Citation omitted]. Nor do we decide whether certain amendments to Title VII in the Civil Rights Act of 1991 [[42 USC Section 2000e-2\(m\)](#), [42 USC Section 2000e-5\(g\)\(2\)\(B\)](#)] are applicable to cases brought under the ADA. These issues were not presented in the instant appeal, and we leave them for another day." *Pinkerton v. Department of Education*, [108 LRP 31678](#), 529 F.3d 513 (5th Cir. 2008).
- The 7th U.S. Circuit Court of Appeals ruled that the ADA does not impose employer liability for mixed motive disability discrimination claim if found that if an employer considered an employee's disability in making an adverse employment decision -- but would have made the same decision for other reasons -- the ADA does not provide relief for the employee. *Serwatka v. Rockwell Automation, Inc* [110 LRP 3713](#), 591 F.3d 957 (7th Cir. 2010).

Attorney's fees

- Hadley:** In *Reddy v. Agency for International Development*, [107 LRP 52087](#), EEOC No. 0720060022 (EEOC OFO 2007), the commission found that in a mixed motive case where the complainant received minimal relief and did not prevail on several other counts, a reduction of 75 percent of the lodestar fee was appropriate. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Mixed Motive Cases](#).
- Hadley:** However, no fee reduction is warranted solely because in a mixed motive case the agency proves it would have taken the same action even absent discrimination. See *Bell v. Department of the Navy*, [108 LRP 39290](#), EEOC No. 0720080024 (EEOC OFO 2008) (full fees awarded in mixed motive case in which agency prevailed on defense and fee reduced only for filing unwarranted motions). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Mixed Motive Cases](#)
- In a mixed motive case, the EEOC ordered training for the discriminating official, consideration of discipline, and the posting of a notice that discrimination had been found. This was enough to render the complainant a prevailing party for the purposes of attorney's fees. *Call v. Department of Transportation*, [107 LRP 63257](#), EEOC No. 0720070017 (EEOC OFO 2007).
- Although comments made by an official in a decision letter constituted direct evidence of a discriminatory motive, the agency demonstrated would have removed the petitioner even absent any discriminatory motive. The petitioner was not considered a "prevailing party" for the purposes of attorney's fees because at most, he had only a "purely technical or de minimus success." *Lindsey T. v. Department of Defense, Defense Logistics Agency*, [117 LRP 11172](#), EEOC No. 0320150028 (EEOC OFO 2017).

Other Resources

- [EEOC Management Directive 110, Chapter 11, Remedies](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories of Discrimination -- Intentional Discrimination, Subchapter 04 -- Direct Evidence and "Mixed Motive" Cases](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 10 -- Theories of Discrimination -- Intentional Discrimination, Subchapter 04 -- Direct Evidence and "Mixed Motive" Cases, Section F -- Rebutting Mixed Motive Evidence](#)

- [*Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 22 -- Attorney Fees, Subchapter 03 -- The "Lodestar", Section G -- Mixed Motive Cases*](#)

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